

IN THE LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Criminal Appeal No.81797-J/2022

Usman

VS

The State

Murder Reference No.23/2023

The State

VS

Usman

P.S.L.A. No.81996/2022

Ibrar Hussain

VS

Sikandar, etc.

J U D G M E N T

Date of hearing:	<u>09.02.2026.</u>
Appellant by:	Mr. Abdul Khaliq Safrani, Advocate along with Mr. Muhammad Ahmad Jhujh, Advocate.
State by:	Mr. Haroon Rasheed, Deputy Prosecutor General.
Complainant by:	Rana Raza Mohy-ud-Din, Advocate along with Mr. Arslan Shabbir, Advocate for Ibrar Hussain (complainant of the case in Crl. Appeal No.81797-J/2022 and for the petitioner in P.S.L.A. No.81996/2022).

FAROOQ HAIDER, J.:- This single judgment will dispose of **Crl. Appeal No.81797-J/2022** filed by **Usman (appellant)** against his “convictions & sentences”, **Murder Reference No.23/2023** sent by trial court, and **P.S.L.A. No.81996/2022** filed by **Ibrar Hussain (complainant)** against the order of acquittal of Sikandar, as all the matters have arisen out of one and the same judgment dated: 06.12.2022 passed by learned Addl. Sessions Judge, Tandlianwala/trial court.

2. Usman (appellant) along with his co-accused namely Sikandar was tried in complaint case titled as “**State through Ibrar Hussain versus Usman and another**” and trial court after conclusion of the trial, *vide* impugned judgment dated: 06.12.2022 while acquitting Sikandar (aforementioned co-accused) has convicted and sentenced the appellant; in this regard, relevant portions from paragraphs No.39, 40, 41, 42, 43 and 44 are as under: -

“39. Against accused Usman prosecution has successfully prove its case beyond any shadow of doubt, thus, accused Usman son of Wali Muhammad age 30 years caste Watto resident of Chak No.618 G.B Tehsil Tandlianwala District Faisalabad is held guilty and convicted for the charge of murder of deceased Mukhtar u/s 302(b) PPC as Tazir, attempted to commit murder of Muhammad Imran u/s 324 PPC,

causing injury to Muhammad Imran u/s 337-F1 PPC and for committing mischief by causing damage to mobile phone of Muhammad Imran u/s 427 PPC.

40. *So far as quantum of sentence is concerned, in view of circumstances of this case, convict Usman is sentenced u/s 324 PPC for attempting to commit Qatl-i-Amd of Muhammad Imran for seven (07) years imprisonment (R.I) alongwith fine of Rs.20,000/--In case of default of payment of fine, the convict shall undergo S.I for 01 months.*

41. *Convict Usman u/s 337-F1 PPC is awarded one year imprisonment (R.I) with daman of Rs.20,000/- to injured Muhammad Imran, in default of payment of daman the convict remained in jail as if sentenced to simple imprisonment till Daman is paid in full.*

42. *Convict Usman u/s 427 PPC is also awarded sentence of six (6) months imprisonment (R.I) with fine of Rs.10,000/-, in default whereof shall undergone simple imprisonment for two months.*

43. *All sentences shall run concurrently and benefit of section 382-B Cr.PC is also extended to him (convict Usman).*

44. *Convict Usman also committed the murder of deceased Mukhtar Ahmad. He made repeated fires and there is no mitigating circumstance in this case. The normal wages for crime of Qatl-e-Amd is death and said convict deserves no less as he intentionally committed Qatl-i-amd of deceased Mukhtar. Therefore, he is sentenced to death u/s 302 (b) PPC as Tazir and be hanged by his neck till death. The sentence of death of convict Usman is subject to confirmation by the Hon'ble Lahore High Court for which Ahlmad is directed to send reference in this regard. The convict Usman shall also pay the compensation amounting to Rs.2,00,000/-(two lacs rupees) to legal heirs of deceased Mukhtar Ahmad, as required u/s 544-A of Cr.P.C and in default thereof, defaulter convict shall further suffer SI for the period of six months and then amount be recovered as arrear of land revenue."*

3. Primarily, Ibrar Hussain (complainant/PW-2) set the machinery of law into motion by submitting application (Ex.PA) for registration of case to Muhammad Ramzan S.I./HIU (CW-3) on 26.07.2021 at 04:00 p.m. in Civil Hospital, Tandlianwala regarding murder of his brother Mukhtar Ahmad as well as causing injuries to his paternal cousin (چچا زاد) namely Muhammad Imran by Usman (accused/appellant) while firing shots with pistol .30 bore hitting at right side under armpit, on the right side at his back and right shoulder of Mukhtar Ahmad as well as on the right thigh of Muhammad Imran after breaking mobile lying in his pocket; for ready reference, relevant portion of aforementioned application (Ex.PA) is hereby scanned below: -

کہ یہ آگے بڑھا تو الزام عیدہ عثمان نے
 جان لیا حاضر پیش کیا جو کہ چاراد خیر عثمان
 کو دلائل جانب جب کہ اوپر آگ اور جب
 میں جوابات کو توڑتا ہوا بیٹ پر لگا خادیموں
 انہیں ملے لکھاتے رہے کہ اگر کوئی قریب آ یا تو
 جان سے مار دیں گے گویاں والی دینے وقوع
 چشم خود کیا الزام عیدہ لکھاتے ہوئے موقع
 سے فرار ہو گئے۔ ۱۵ برس کا لکھی۔ ایسی دوران
 مسکن و گویاں نے الزام کو سنبھالا جو کہ زخموں کی
 تاب نہ لے کر ہاتھ سے دھکے دے کر زخموں کی
 موجب بخار دیا کہ مسکن، چاراد ایسی ملکی الافی میں
 وحش بنے لکھا جاتے تھے جس کا الزام عیدہ کو رنج
 تھا اس کو شرم کی بنا پر الزام عیدہ نے باہم صلح کر کے
 ہو کر صلح ہو کر الزام کو خالق قتل کیا اور چاراد کو خالق
 قتل کر کے فرار ہو گئے۔ الزام عیدہ کے خلیفہ خلیفہ دراز
 کیا جا سکا ملکان کو گرفتار کر کے قتل واقع سزا دی جائے
 بازار حسین ولد حیدر احمد ذریعہ ولسن کینہ ۶۱۵
 مکمل شدہ نہا فرم مکمل شدہ
 0346-7772443
 33106-0327584-7-

[illegible]

On the basis of aforementioned application (Ex.PA), case was registered *vide* F.I.R. No.434/2021 (Ex.CW2/A) on 26.07.2021 under Sections: 302, 34 PPC {subsequently, offences under Sections: 324, 337-F(i) and 427 PPC were added during investigation of the case) at Police Station: Saddar Tandlianwala, District: Faisalabad. However, being dissatisfied with the conduct of the police, complainant filed “**complaint**” (Ex.PB) against Usman, Sikandar and two unknown accused persons under Sections: 302, 324, 337-F(i), 427, 34 PPC; for ready reference, relevant portion of said complaint (Ex.PB) is hereby scanned below: -

2۔ یہ کہ مورخہ 2021-07-26 کو بوقت قریب 11:45 بجے دن سائل ہمراہ برادر مختار احمد، چچا زاد محمد عمران، اللہ یار ولد جلال، اسرار احمد ولد احمد علی اقوام وٹو سکنائے چک نمبر 618 گ۔ ب تحصیل تاندلیا نوالہ ضلع فیصل آباد اپنے گھر سے اپنی ملکیتی اراضی میں وٹ بند نکالنے کیلئے نکلے جب محتل خاں کے گھر کے سامنے پہنچے تو الزام علیہان 1۔ عثمان مسلح پٹیل 30 بور 2۔ سکندر مسلح پٹیل 30 بور 3۔ دو کس نامعلوم مسلح ہائے آتشیں اسلحہ سامنے کھڑے تھے۔ الزام علیہ عثمان نے لکارا مارا کہ آج تمہیں زمین میں وٹ نکالنے کا مزہ چکھاتے ہیں اور الزام علیہ عثمان نے اپنے دستی 30 بور مسلح کا فائر جان سے مار دینے کی نیت سے برادر مختار احمد پر کیا جو اسے دائیں جانب بغل کے نیچے لگا جس سے برادر مختار سائل زمین پر گر گیا۔ دوسرا فائر پھر الزام علیہ عثمان نے کیا جو برادر مختار سائل مختیار احمد کو دائیں جانب کمر پر لگا۔ پھر الزام علیہ عثمان نے فائر کیا جو برادر مختار سائل کو دائیں کندھے پر پھینکی جانب لگا۔ اسی دوران چچا زاد عمران چھڑانے کیلئے آگے بڑھا تو الزام علیہ عثمان نے سیدھا فائر جان سے مار دینے کی نیت سے چچا زاد محمد عمران پر کیا جو عمران کو بائیں جانب شلوار کی جیب کے اوپر لگا اور جیب میں موبائل کو توڑ کر پٹ کو چھوٹا

ہوا گزر گیا۔ سکندر اور نامعلوم ملزمان ہماری طرف اسلحہ تان کر لٹکارتے رہے کہ اگر کوئی قریب آیا تو جان سے مار دیں گے جو کہ ہم اسلحہ کے خوف سے سہم گئے۔ گواہان و اہل دیہہ نے وقوعہ ہذا پیش خود دیکھا اور الزام علیہان اپنا دتی اسلحہ لہراتے ہوئے اور لٹکارتے ہوئے موقع سے فرار ہو گئے۔ برادر سائل مختار احمد موقع پر زخموں کی تاب نہ لاتے ہوئے جاں بحق ہو گیا۔ وجہ عناد یہ ہے کہ سائل و برادر و چچا زاد اپنی ملکیتی اراضی میں میں وٹ نکالنا چاہتے تھے۔ مورخہ 26-07-2021 کو صبح 7:00 بجے بھی سائل و برادر و چچا زاد کا الزام علیہان عثمان وغیرہ سے وٹ بند نکالنے پر توں تکرار ہوئی تھی اور الزام علیہان عثمان وغیرہ نے دھمکی دی تھی کہ تمہیں جلد ہی اس کا مزہ چکھادیں گے۔ اسی رنج کی بناء پر الزام علیہان نے باہم صلاح مشورہ اور مسلح ہو کر برادر کو ناحق قتل کیا اور چچا زاد کو ناحق مصرو ب کر کے سخت زیادتی کی ہے۔ چچا زاد عمران کا طبی ملاحظہ بذریعہ پولیس ہوا۔

3- یہ کہ وقوعہ ہذا کی بابت مقدمہ نمبر 434/21 درج رجسٹرڈ ہوا جس میں مقامی پولیس کا رویہ اول روز سے ملزمان پارٹی کے ساتھ ساز باز تھا جس نے گواہان کے بیانات درست طور پر قلمبند نہ کیے اور مقدمہ ہذا میں ناقص تفتیش کی اور ملزم سکندر کو مقدمہ ہذا میں چالان نہ کیا اور سائل کی پیش کردہ شہادت کو ضائع کرنے کی کوشش کی جس پر سائل نے اعلیٰ پولیس افسران کو درخواست گزاری مگر کوئی شنوائی نہ ہوئی بدیں وجہ استغاثہ ہذا دائر کیا گیا ہے۔ پولیس افسران کو درخواستیں گزاریں جس پر کوئی شنوائی نہ ہوئی۔ جس وجہ سے استغاثہ ہذا دائر کیا جا رہا ہے۔ لہذا استغاثہ ہذا میں ملزمان کو طلب فرما کر قراقر واقعہ سزا دی جائے جو کہ بین قرین انصاف ہے۔

Usman (appellant) and Sikandar (aforementioned co-accused) were summoned and formally charge sheeted to which they pleaded not guilty and claimed trial; prosecution produced four witnesses to prove the charge against the accused whereas five witnesses were examined by the trial court as Court Witnesses; ocular account was furnished by Ibrar Hussain (complainant/ PW-2), Muhammad Imran (injured/PW-3) and Israr Ahmad (PW-4); medical evidence was furnished by Dr. Muhammad Sufyan (CW-4) whereas Muhammad Ramzan, S.I./Investigating Officer (CW-3) deposed about investigation of the case. Thereafter statements of the appellant and his co-accused were recorded under Section: 342 Cr.P.C. in which they refuted the allegations levelled against them, they did not opt to appear as their own witnesses under Section: 340(2) Cr.P.C. or produce any evidence in defence; however, copies of statements of Muhammad Imran and Israr Ahmad were brought on record as Ex.DA and Ex.DB, respectively during the trial.

Trial Court after conclusion of trial while acquitting co-accused namely Sikandar, has convicted and sentenced the appellant as mentioned above through the impugned judgment.

4. Learned counsel for the appellant has submitted that convictions recorded and sentences awarded to the appellant through impugned judgment are against the 'law and facts' of the case; ocular account is neither

trustworthy nor corroborated/supported by any other independent evidence; prosecution has remained unable to prove its case. Learned counsel for the appellant finally prayed for acquittal of the appellant.

5. Learned Deputy Prosecutor General has supported the impugned judgment to the extent of convictions recorded against and sentences awarded to the appellant and prayed for dismissal of the appeal.

6. Learned counsel for the complainant while supporting convictions and sentences recorded against the appellant (Usman) prays for dismissal of the appeal filed by the convict; whereas he in support of P.S.L.A. filed against order of acquittal of Sikandar submits that said acquittal is against the law and facts as well as result of misreading and non-reading of evidence; complainant has proved his case against him as well up to hilt. Lastly prayed for setting aside the order of acquittal as well as convicting and awarding punishment to the acquitted accused in accordance with law.

7. **Arguments heard. Record perused {it is relevant to mention here that 3rd page of statement of Muhammad Imran (injured/PW-3) recorded before trial court has not been included in the Paper book, which has been perused from the original record}.**

8. It has been noticed that as per case of prosecution mentioned in the application (Ex.PA) for registration of case as well as complaint (Ex.PB), occurrence took place on 26.07.2021 at about 11:45 a.m. (noon) whereas it was reported to the police through application (Ex.PA) at 04:00 p.m. on 26.07.2021 in Civil Hospital, Tandlianwala and on the basis of said application, F.I.R. (Ex.CW2/A) was recorded at 04:45 p.m. on 26.07.2021 in the Police Station: Saddar Tandlianwala; District Faisalabad. Any reason whatsoever to explain delay in submitting application (Ex.PA) for registration of case is neither mentioned in said application (Ex.PA) nor brought on record during trial of the case; as mentioned above, application (Ex.PA) for registration of case was submitted before Muhammad Ramzan, SI/HIU (CW-3) at Civil Hospital, Tandlianwala, which was just at a distance of 01-kilometer from the police station and in this regard relevant portion of statement of Khadim Hussain (CW-1) is hereby reproduced as under:-

“The distance between hospital and police station is about one km.”

However, F.I.R. (Ex.CW2/A) was recorded at 04:45 p.m. at the police station and in such circumstances, case has been registered with unexplained delay;

furthermore, as per Inquest Report (Ex.CW3/C), dead body was available in Civil Hospital, Tandlianwala and if application (Ex.PA) for registration of case was received by the police official at 04:00 p.m. in said hospital, then there was no hinderance for conducting postmortem examination over dead body of the deceased immediately thereafter but autopsy over dead body of the deceased was conducted with delay at 08:00 p.m. and reason of conducting autopsy with such delay was in fact that police papers were received in the hospital at 08:00 p.m.; in this regard, relevant portion of statement of Dr. Muhammad Sufyan (CW-4) is hereby reproduced as under:-

“I started the postmortem of deceased after receiving complete police paper at about 8:00 pm.”

Though it was mentioned in the application (Ex.PA) for registration of case that after fleeing away of the accused persons from the spot, call was made at 15 but any official of 15 or record of any such call was not produced during trial of the case and furthermore, complainant/PW-2 stated during his statement before the court that said call was made by some member of the village and any particulars of said villager was not given during investigation of the case and even he was not produced during trial of the case; in this regard relevant portion of statement of Ibrar Hussain (complainant/PW-2) is hereby reproduced as under:-

“The alleged occurrence was reported through emergency call at 15 by some member of the village.”

He (complainant/PW-2) during his statement before the Court also stated that dead body reached at Tehsil Headquarter Hospital, Tandlianwala at 02:00 p.m.; in this regard relevant portion of his statement is hereby reproduced as under:-

“The dead body reached at THQ Hospital Tandlianwala at 02:00 p.m.”

But even then matter was not reported to the police when police station was just at one kilometer from the hospital (as discussed above). It is also relevant to mention here that the complainant (PW-2) in his statement before the Court could not tell that why the F.I.R. was registered with delay; in this regard relevant portion of his statement is hereby reproduced:-

“I cannot tell why the FIR was registered with a delay.”

Furthermore, Muhammad Imran (injured/PW3) stated in his statement before the Court that police reached the hospital at 02:10 p.m.; in this regard relevant portion of his statement is hereby reproduced:-

*““Questioned when police reached the place of occurrence”. Answer
“police reached the hospital at 02:10 PM.”*

But if the police reached in the hospital at 02:10 p.m., then why case was not registered then and there rather application (Ex.PA) for registration of case was submitted by the complainant (PW-2) to the police at 04:00 p.m. and F.I.R. (Ex.CW2/A) was recorded at 04:45 p.m. as per own case of the prosecution. Likewise, Israr Ahmad (PW-4) also stated that police reached at hospital at 02:15 p.m. on 26.07.2021, remained there for 10/15 minutes and then left the hospital for police station; in this regard relevant portion of his statement is hereby reproduced:-

“Police on 26.07.2021, arrived at the hospital. Police reached the hospital at 02:15 PM and remained there for 10/15 minutes and then left the hospital for police station.”

so much so that as per case of prosecution mentioned in the application (Ex.PA) as well as in the complaint (Ex.PB), occurrence took place at 11:45 a.m. (noon) on 26.07.2021 however it could not be verified during investigation of the case rather it was concluded during the investigation that the occurrence took place at 10:30 a.m.; in this regard, relevant portion of statement of Muhammad Ramzan, S.I. (Investigating Officer/CW-3) is hereby reproduced as under: -

“According to above said investigation of DSP the present occurrence took place at 10:30 am.”

When all above discussed facts are taken into consideration collectively, then it can be safely concluded that case was not registered even at the stated time rather with delay however showing ante-time in the record, which clearly suggests that none of the cited eyewitnesses including the complainant was present at the relevant “time and place” of occurrence, time was consumed for engaging/procuring witnesses, tailoring story for prosecution, then getting the case registered in its present form and completing police papers for postmortem examination. Therefore, neither any sanctity nor evidentiary value can be attached to the First Information Report (F.I.R.) in the case and it cannot provide any corroboration to the case of prosecution against the appellant rather it has lost its efficacy and damaged the case of prosecution; in this regard, guidance has been sought from the case of **“HAROON**

SHAFIQUE versus The STATE and others” (2018 SCMR 2118). It is by now well settled that First Information Report is considered as foundational element and cornerstone of the case of prosecution for the reason that it contains first hand detail of the occurrence presumably free from any adulteration/manipulation, addition or omission and if it is delayed as in this case is and there is no explanation in this regard, then superstructure raised on the basis of this F.I.R. i.e. case of prosecution is bound to fall like house of cards; in this regard, guidance has been sought from the cases of “**Mst. ASIA BIBI versus The STATE and others**” (PLD 2019 Supreme Court 64), “**GHULAM ABBAS and another versus The STATE and another**” (2021 SCMR 23), “**PERVAIZ KHAN and another versus The STATE**” (2022 S C M R 393) and “**ABDUL GHAFUOR versus The STATE**” (2022 SCMR 1527).

Ocular account produced by the prosecution comprises of statements of Ibrar Hussain (complainant/PW-2), Muhammad Imran (injured/PW-3) and Israr Ahmad (PW-4). Perusal of site plans of the place of occurrence prepared by Investigating Officer (Ex.CW3/E) as well as prepared by the Draftsman (Ex.CW5/A) reveals that house or place of work/job of aforementioned cited eyewitnesses including the complainant were not at or near the place of occurrence; so, they were chance witnesses and thus required to explain valid reason regarding their presence over there at the relevant time. Though it was case of the prosecution as per application (Ex.PA) for registration of case that aforementioned witnesses were going from home to their land for making *Watt Banna* (وٹ بنہ) and when reached at front of house of Mittal Khan, occurrence took place; however, any article of cultivation/making for *Watt Banna* (وٹ بنہ) was neither with them at that time as per application (Ex.PA) as well as complaint (Ex.PB) nor any such article/instrument was secured from the place of occurrence during investigation of the case or even produced during trial of the case. It was also not mentioned in both aforementioned site plans of the place of occurrence (i.e. Ex.CW3/E and Ex.CW5/A) that their said land was situated at or near the place of occurrence. As per own case of the prosecution, accused fled away after committing the occurrence, even then Mukhtar Ahmad (now deceased of the case) was not shifted to any nearby medical center/clinic/hospital for providing any medical aid to him though as per statement of Dr. Muhammad Sufyan (CW-4), probable time that elapsed between injury and death of the deceased was

30-minutes; furthermore, why Muhammad Imran (PW-3), who was hit by firearm shot at thigh, was not immediately taken to any hospital for medical treatment? It is also relevant to mention here that as per application (Ex.PA) for registration of case, after fleeing away of the accused persons from the spot, complainant and aforementioned cited eyewitnesses managed Mukhtar Ahmad however he succumbed to the injuries at the spot but any clothes of the cited eyewitnesses including the complainant which might have become smeared with blood of the deceased during his management, were neither produced during investigation of the case nor brought on the record during the trial. When as per own case of the prosecution mentioned in the application (Ex.PA), Mukhtar Ahmad succumbed to the injuries after fleeing away of the accused persons from the spot, complainant and witnesses did not try to shift him as well as Muhammad Imran (PW-3) to any hospital, then it was quite natural for the complainant and the witnesses to immediately go to the police station for getting case registered but they did not do so and any reason in this regard whatsoever is not available on the record. It is also noticeable fact here that as per application (Ex.PA), shot fired by the appellant hit at thigh of Muhammad Imran (injured/PW-3) but he was medically examined by the doctor (CW-4) after registration of the case at 06:15 p.m. and any plausible reason to explain such conduct and delay is not available on the record. It is also noteworthy here that as per application (Ex.PA), shot fired by the present appellant hit at right side above pocket of Muhammad Imran (injured/PW-3) and while breaking mobile, hit his thigh, whereas as per Medico-Legal Examination Certificate (Ex.CW4/C), no injury was found on the right thigh of said injured/witness rather there was only 0.5 x 0.5 cm **abrasion** on front of left thigh which was associated with 02 x 01 cm radish bruise 10 cm from left iliac bone; meaning thereby that on the one hand there was no injury on the right thigh of injured/PW-3 whereas on the other hand, on the left thigh neither there was any entry wound nor exit wound rather there was only **abrasion and bruise**; furthermore, it is not mentioned in said Medico-Legal Examination Certificate that any blood or pinkish fluid was oozing from the abrasion or bruise; after obtaining said MLC, application *qua* supplementary statement (Ex.CW3/D) was filed by the complainant while containing dishonest improvement that shot fired hit mobile available in left side pocket, broke mobile and hit left thigh of injured; then complaint (Ex.PB) was filed by the complainant/PW-2 while introducing further dishonest improvement in this regard by mentioning therein that Usman (present appellant) fired shot at Imran which hit on left side *Shalwar* at the pocket (جیب کے اوپر) while breaking the mobile

and touching thigh passed away whereas in the application (Ex.PA) for registration of case it was mentioned as under:-

".....عثمان نے سیدھا جان لیوا فائر پٹل کیا جو کہ چچا زاد محمد عمران کو دائیں جانب جیب کے اوپر لگا اور جیب میں موبائل کو توڑتا ہوا
پٹ پر لگا....."

So aforementioned dishonest improvement was made by the complainant (PW-2) in order to bring the ocular account in line with the medical evidence. The Investigating Officer (CW-3) during his statement before the Court categorically stated that the Shalwar of Imran injured/PW was mentioned in the application (Ex.PA) and similarly right side of pocket was only mentioned; in this regard, relevant portion of his statement is reproduced below: -

"The Shalwar of Imran injured PW was mentioned in Ex.PA and similarly right side of pocket was only mentioned."

however, it is very much important to mention here that when as per case of prosecution, shot fired by present appellant hit at shalwar, mobile phone and thigh, then said shalwar must contain corresponding holes but shalwar of the injured/PW-3 did not carry any corresponding holes and in this regard relevant portion of statement of Dr. Muhammad Sufyan (CW-4) is hereby reproduced:-

"I thoroughly examined the injured Muhammad Imran and his clothes. It is correct that shalwar of injured did not carry corresponding hole."

Even any metallic foreign body (سکہ گولی) was neither found entangled with clothes of said injured witness nor was found available at the place of occurrence. Likewise, any blood stained clothes of said injured/witness were not secured during investigation of the case nor produced during trial of the case; in this regard, relevant portion of statement of Muhammad Ramzan, S.I. (Investigating Officer/CW-3) is hereby reproduced as under: -

"No blood stained clothes of Muhammad Imran injured PW were produced before me by the complainant."

By now it is well settled that injured witness is not necessarily a truthful witness and he cannot be believed merely because he is having stamp of injuries on his body; in this regard, guidance has been sought from the cases of **"MUHAMMAD HAYAT and another versus The STATE"** (1996 SCMR 1411), **"AMIN ALI and another versus The STATE"** (2011 SCMR 323), **"ISHTIAQ HUSSAIN and another versus The STATE and others"** (2021 SCMR 159),

“MUHAMMAD ABRAS versus The STATE” (2025 SCMR 1145) and “FATEH KHAN versus The STATE and others” (2025 SCMR 1408).

Any forensic report showing that mobile phone was hit and broken by firearm shot was not produced during trial of the case; since it is claim of the prosecution that shot fired by the appellant hit at mobile and then to the thigh therefore blood oozed from thigh must have been stained with mobile phone but any mobile phone smeared with blood of the injured witness was not produced; in this regard relevant portion of statement of Israr Ahmad (PW-4) is hereby reproduced as under:-

“Mobile was not blood stained.”

Even any ownership of said mobile phone was not produced during trial of the case and in this regard relevant portion of statement of Muhammad Ramzan SI (CW-3) is hereby reproduced as under:-

“No ownership certificate was produced by the complainant party about the broken Samsung mobile phone on 26.07.2021.”

The complainant (PW-2) also stated in his statement before the Court that all the PWs were present at the time of drafting application (Ex.PA) for registration of case; in this regard relevant portion of his statement is hereby reproduced:-

“I alongwith all other PWs was present at the time of drafting application Exh.PA for registration of case.”

Now it is very much important to note here that if all the aforementioned cited eyewitnesses were present alongwith the complainant at the time of drafting application (Ex.PA) and Muhammad Imran (injured/PW-3) received injury during the occurrence, then why he did not tell at that time that he did not receive firearm shot on his right thigh rather on left thigh and even said shot fired with pistol had not hit the thigh but the same has just passed away while touching the same.

The complainant (PW-2) further made dishonest improvements while stating before the Court that he submitted application for registration of case at 02:10 p.m. which was against the record because as per application (Ex.PA) for registration of case, it was submitted at 04:00 p.m.; in this regard, relevant portion of his statement is reproduced as under: -

“I submitted the application at 02:10 PM.”

Israr Ahmad (PW-4) stated during his statement before that Court that they submitted application at 07:00 a.m. regarding their dispute of land which application regarding motive was annexed with private complaint; further stated that he does not remember that who was the applicant of application of motive occurrence; in this regard relevant portions of his statement are hereby reproduced:-

“We submitted the application at 07:00 AM regarding our dispute of land. We annexed application regarding motive of occurrence with private complaint.”

“I do not remember who was the applicant of application of motive occurrence.”

However neither submission of any such application has been mentioned by the complainant nor produced during the trial.

Israr Ahmad (PW-4) also introduced dishonest improvement regarding crossing of shot through *Shalwar* and relevant portion of his statement in this regard is reproduced below: -

“I narrated the factum of fire shot crossing through shalwar before the police in my statement confronted with Exh.DB where the word “shalwar” is not mentioned.”

He (PW-4) stated before the Court that he produced the MLC of Imran (injured/PW) before the police which was taken from DHQ Hospital, Faisalabad; in this regard; relevant portion of his statement in this regard is reproduced below: -

“I produced the MLC of Imran injured PW before the police. The MLC was taken from DHQ Hospital Faisalabad.”

(emphasis added)

It is also against the facts because MLC of Imran (Ex.CW4/C) was issued by **T.H.Q. Hospital, Tandlianwala** and not by DHQ Hospital, Faisalabad. By now it is also well settled that witnesses who introduce dishonest improvement or omission for strengthening the case, cannot be relied; in this regard, cases of **“MUHAMMAD ARIF versus The STATE” (2019 SCMR 631)** and **“KHALID MEHMOOD and another versus The STATE and others” (2021 SCMR 810)** can be advantageously referred.

It is also very much important to mention here that there was long standing enmity between Zahid son of Muhammad Yar and Mukhtar (deceased of the case); in this regard; relevant portion of statement of Muhammad Imran (injured/PW-3) is reproduced below: -

“It is correct that long standing enmity existed between Zahid son of Muhammad Yar and Mukhtar deceased.”

When all aforementioned factors are taken into consideration in totality, then on the one hand, receiving of firearm injury by Muhammad Imran (injured/PW-3) during the occurrence seems to be doubtful whereas on the other hand, ocular account which comprises of chance witnesses, who could not offer and establish any valid reason regarding their presence at the relevant time and place of occurrence, is neither confidence inspiring nor truthful hence cannot be relied and is thus hereby discarded.

As per case of prosecution mentioned in the application (Ex.PA) as well as in the complaint (Ex.PB), three fires were shot by the appellant; first shot hit at right side under armpit of Mukhtar Ahmad, second shot hit at right side of his back whereas third shot fired by the appellant hit at his right shoulder; however, no firearm entry wound was found by the doctor at the right shoulder during postmortem examination of the deceased and in order to bring the ocular account in line with the medical evidence, dishonest improvement was made by the complainant (PW-2) firstly in the complaint (Ex.PB) while mentioning that said fire hit at posterior side of right shoulder and then complainant also made dishonest improvement in this regard during his statement before the Court. Furthermore, as per application (Ex.PA), shot fired by the appellant upon Muhammad Imran (injured/PW-3) hit above right side pocket, broke mobile in the pocket and then hit at his thigh but any entry or exit wound on the right side of the thigh was not found by Dr. Muhammad Sufyan (CW-4) rather abrasion and bruise were mentioned in his Medicolegal Examination Certificate (Ex.CW4/C). So, ocular version was not supported to the extent of Muhammad Imran (injured/PW-3) whereas it was also not supported to the extent of injury at right shoulder of Mukhtar Ahmad (deceased of the case). Even otherwise, it is trite law that medical evidence is mere supportive/confirmatory type of evidence; it can tell about locale, nature, magnitude of injury, duration of the injury and kind of weapon used for causing injury but it cannot tell about identity of the assailant who caused the injury; in this regard guidance has been sought from the case of **“MUHAMMAD RAMZAN versus The State” (2025 SCMR 762)**, relevant portion from the case law is as under:-

“It is by now well settled that medical evidence is a type of supporting evidence, which may confirm the prosecution version with regard to receipt of injury, nature of the injury, kind of weapon used in the occurrence but it would not identify the assailant.”

So far as motive part of the occurrence is concerned, suffice it to say that as per application (Ex.PA) for registration of case, complainant and his paternal cousin (چچا زاد) wanted to make *Watt Banna* (وٹ بنہ) in their land and accused persons were having grudge over the same and due to said grudge, they committed the occurrence; however, neither said land has been mentioned in the site plans of the place of occurrence nor any document showing that any land was owned by the complainant party, has been brought on the record; furthermore, any reason whatsoever was not mentioned in the application (Ex.PA) for registration of case to show that if complainant party was just wanting to make *Watt Banna* (وٹ بنہ) in their own land, then why accused party was against it, so much so that it was also not mentioned in the application (Ex.PA) that when, where and before whom, they (i.e. accused party) expressed their grudge against wish of making of said *Watt Banna* (وٹ بنہ) and how it came into the knowledge of complainant party prior to the occurrence; complainant at belated stage when filed the complaint (Ex.PB), made dishonest improvement in this regard while mentioning that he (complainant/PW-2), his brother and paternal cousin (چچا زاد) wanted to make *Watt Banna* (وٹ بنہ) from their own land and on 26.07.2021 at 07:00 a.m., an altercation took place between accused persons, complainant, his brother and paternal cousin (چچا زاد); accused persons issued threats and for said reason, they committed the occurrence; in this regard, relevant portion of the complaint (Ex.PB) is hereby reproduced as under: -

"وجہ عنادیہ ہے کہ سائل و برادر م وچچا زاد اپنی ملکیتی اراضی میں میں وٹ نکالنا چاہتے تھے۔ مورخہ 26-07-2021 کو صبح 7:00 بجے بھی سائل و برادر م وچچا زاد کا الزام علیہان عثمان وغیرہ سے وٹ بند نکالنے پر توں تکرار ہوئی تھی اور الزام علیہان عثمان وغیرہ نے دھمکی دی تھی کہ تمہیں جلد ہی اس کا مزہ چکھادیں گے۔ اسی رنج کی بناء پر الزام علیہان نے باہم صلاح مشورہ اور مسلح ہو کر برادر م کو ناحق قتل کیا اور چچا زاد کو ناحق مضروب کر کے سخت زیادتی کی ہے۔"

Furthermore, it is noticeable fact that if any altercation took place between accused persons, complainant, his brother and paternal cousin (چچا زاد), then this motive was also equally attributed to the complainant but why he remained unhurt and why attempt was not made by the accused party to cause any injury to him; though complainant and other cited eyewitnesses made dishonest improvements in this regard during their statements recorded before the Court yet even then it was not mentioned by them that at which place and in whose presence, said altercation took place and why accused party was against making of

said *Watt Banna* (وٹ بنہ). Relevant portions of statement of complainant (PW-2) regarding this dishonest improvement are reproduced below: -

“On the morning of 26.07.2021 at 07:00 AM we had a quarrel and exchange of hot words with Usman etc accused persons and Usman etc had threatened us to teach a lesson very soon. Due to this grudge the accused persons after sharing common intention and object committed the murder of my brother Mukhtar and caused injury to Muhammad Imran.”

“I did not inform the police of the dispute alleged as motive of the occurrence.”

“I cannot tell if the time of 07:00 am on 26.07.2021 is mentioned in my statement recorded before the court.”

Muhammad Imran (injured/PW-3) also introduced dishonest improvements regarding motive part; in this regard; relevant portion of his statement is reproduced below: -

“I narrated before the police in my statement that on 26.07.2021 at about 07:00 AM, the motive part of the occurrence took place, confronted with Exh.DB where it is not so recorded.”

Israr Ahmad (PW-4) also introduced dishonest improvement regarding motive part for creating evidence in this regard; relevant portion of his statement in this regard is reproduced below: -

“I narrated in my statement before police that on 26.07.2021 at 07:00 AM a scuffled took place between us and accused persons, confronted with Exh.DB where 07:00 AM is not mentioned.”

Relevant portions from the statement of Muhammad Ramzan, S.I. (Investigating Officer/CW-3) regarding motive part of the occurrence are also reproduced below: -

“No application was submitted before me to arrange measurement about the motive part of this case.”

“Even no independent villager was produced about motive part.”

“No time of motive part was mentioned in Ex.PA.”

So, in this case, motive could not be proved; even otherwise, motive is a double edged weapon, it cuts both the ways, it can also be a reason for false implication; even otherwise, when substantive evidence has been discarded, then motive loses its significance and becomes immaterial for conviction.

Though pistol .30 bore (P-1) was got recovered by the appellant and on its un-loading, three live bullets were found in the same, said pistol alongwith three live bullets were sealed into parcel, secured/taken into possession vide recovery memo Ex.PC (available at Page No.112 of the paper book) and as

per case of prosecution, said parcel was deposited in the office of Punjab Forensic Science Agency, Lahore and according to report of PFSA, Lahore Ex.PG (available at Page No.27 of the paper book), five cartridge cases secured from the place of occurrence were found as having been fired from said pistol yet it is very much important to mention here that availability of three live bullets in the parcel of pistol is not mentioned in said report; so, safe custody of said parcel has been compromised and not established, therefore, conclusiveness of the report of Punjab Forensic Science Agency, Lahore (Ex.PG) has been impaired, its sanctity has been eroded and it has become unreliable hence of no help to the case of prosecution.

9. It is well established principle of law that single circumstance/doubt in case of prosecution is sufficient for acquittal; in this regard, cases of **“MUHAMMAD BILAL versus The STATE”** (2025 SCMR 1580) and **“MUHAMMAD ASGHAR versus The STATE”** (2025 SCMR 1616) can be safely referred.

10. In view of what has been discussed above, prosecution has been failed to prove its case beyond shadow of doubt against the appellant hence there is no need to discuss defence version. Therefore, Criminal Appeal No.81797-J/2022 filed by Usman (appellant), is **allowed**; conviction recorded and sentence awarded to the appellant through impugned judgment dated: 06.12.2022 passed in aforementioned subject case, are hereby set aside. Appellant is acquitted of the charge, he shall be released from the jail forthwith, if not required in any other case.

11. Resultantly, death sentence awarded to Usman (appellant) is **NOT CONFIRMED** and Murder Reference (**M. R. No.23 of 2023**) is answered in **NEGATIVE**.

12. We have gone through the order of acquittal of Sikandar, recorded through the impugned judgment by trial Court and found that the same is neither perverse, capricious nor arbitrary rather reasons mentioned therein have been found as perfectly in accordance with law, facts and record of the case for extending benefit of doubt and acquitting him. After acquittal, accused attained double presumption of innocence and Courts are always slow to disturb the same and in this regard, reliance can be placed upon the cases of **“HAJI PAIO KHAN versus SHER BIAZ and others”** (2009 SCMR 803) and **“MUHAMMAD SHAFI alias KHDDOO versus**

The STATE and others” (2019 SCMR 1045); from, latter case law, relevant portion is reproduced:-

“It is by now well settled that acquittal carries with it double presumption of innocence; it is reversed only when found blatantly perverse, resting upon fringes of impossibility and resulting into miscarriage of justice. It cannot be set aside merely on the possibility of a contra view.”

Thus, **P.S.L.A. No.81996/2022** is dismissed.

(Ali Zia Bajwa)
Judge

(Farooq Haider)
Judge

Approved for reporting.

(Ali Zia Bajwa)
Judge

(Farooq Haider)
Judge

This judgment has been dictated
and pronounced on 09.02.2026
whereas after preparation/
completion, signed on 10.02.2026.

Kashif